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SWNCC 272/D

5 March 1946

Pages 1 - 3, incl.

STATE-WAR-NAVY COORDINATING COMMITTEE

DIRECTIVE

SOVEREIGNTY OF FORMOSA

Note by the Secretaries

The enclosure, a memorandum by the War Member forwarding a cable from the Commanding General, U.S. Forces, China Theater, is referred to the State-War-Navy Coordinating Subcommittee for the Far East for study and report as a matter of high priority.

ALEXANDER D. REID
B. L. AUSTIN
RAYMOND E. COX
Secretariat

(1)

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ENCLOSURE

SOVEREIGNTY OF FORMOSA

Memorandum by the War Member,
State-War-Navy Coordinating Committee

4 March 1946

There is inclosed a copy of a cable from the Commanding General, U.S. Forces, China Theater, (Appendix) concerning the taking over of property of Japanese civilians who are citizens of Formosa, when they are repatriated from Formosa. He asks guidance concerning the exact legal status and sovereignty of Formosa in order to advise the Chinese authorities concerning property matters involved in repatriation of Japanese civilians who are citizens of Formosa. It is requested that the SWNCC Subcommittee for the Far East be designated to prepare a report on this question as a matter of high priority.

Incl:
CM IN 3760 (Appendix)

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APPENDIX

Paraphrase of Message from CG, U.S. Forces, China Theater, to War Department

From: CG US Forces China Theater Shanghai China

To: War Department

Nr: CFBX 23362 16 February 1946

With reference to the repatriation of Japanese from Formosa, the matter of taking over property belonging to Japanese civilians who are citizens of Formosa must be clarified with respect to the exact legal status of Formosa to permit this Hdqs to advise the Chinese authorities in this matter.

COMGENCHINA is responsible under current theater directives to advise and assist Chinese in repatriation of Japs from China Theater, including Formosa. Plans have been made accordingly to repatriate all Japs nationals from Formosa to be completed by 30 April 46. Each repatriate under this plan is limited to the amount of baggage he can carry on his person and the plan also prescribes the amounts and kind of currency and financial instruments which repatriates (including Jap citizens of Formosa) can take to Japan.

The question as to the present legal status of Formosa is brought up in the taking over of properties of Japanese civilians who are citizens of Formosa. It would appear that Formosa presents a special case in that it was formerly recognized by the US as Japanese territory. It would appear that under international law Formosa's still Japanese territory and will remain Japanese territory until sovereignty is awarded to some other country by means of a formal treaty, although the heads of State have agreed that Formosa shall be returned to Chinese sovereignty.

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State Department guidance as to the exact legal status of Formosa is requested in as much as the present legal status of Formosa has a direct bearing on handling of the property of Japanese citizens of Formosa who have been or are to be sent to Japan.

This Hdqs, until instructions are received to the contrary, will continue the repatriation of Japanese from Formosa in accordance with present plans. Formosa Japs under present plans are in effect placed in same category as Jap nationals being repatriated from China proper.

End

CM-IN-3760 (18 Feb 46)